EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

FIRST SECTION

DECISION

Application no. 33047/18
Arastun BAKHSHALIYEV
against Azerbaijan
(see appended table)

The European Court of Human Rights (First Section), sitting on 9 March 2023 as a Committee composed of:

Alena Poláčková, *President*,
Gilberto Felici,
Raffaele Sabato, *judges*,
and Viktoriya Maradudina, *Acting Deputy Section Registrar,*

Having regard to the above application lodged on 21 June 2018,

Having regard to the declaration submitted by the respondent Government requesting the Court to strike the application out of the list of cases, and the applicant's reply to this declaration,

Having deliberated, decides as follows:

FACTS AND PROCEDURE

The applicant's and his representative's details are set out in the appended table.

The applicant's complaint under Article 11 of the Convention concerning the unlawful or disproportionate measures against organisers and participants of public assemblies was communicated to the Azerbaijani Government ("the Government"). His other complaints based on the same facts were also communicated under Article 6 of the Convention, given the relevant well-established case-law of the Court.

After unsuccessful friendly-settlement negotiations, the Government submitted a declaration with a view to resolving the issues raised by these complaints. They further requested the Court to strike out the application.

The Government acknowledged that the domestic authorities had violated the applicant's rights guaranteed under Articles 6 and 11 of the Convention. They offered to pay the applicant the amounts detailed in the appended table and invited the Court to strike the application out of the list of cases in

accordance with Article 37 § 1 (c) of the Convention. The amounts would be converted into the currency of the respondent State at the rate applicable on the date of payment, and would be payable within three months from the date of notification of the Court's decision. In the event of failure to pay these amounts within the above-mentioned three-month period, the Government undertook to pay simple interest on them, from the expiry of that period until settlement, at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points.

The payment will constitute the final resolution of the case.

The applicant informed the Court that he agreed to the terms of the declaration.

THE LAW

The Court finds that, following the applicant's express agreement to the terms of the declaration made by the Government, the case should be treated as a friendly settlement between the parties.

It therefore takes note of the friendly settlement reached between the parties. It is satisfied that the settlement is based on respect for human rights as defined in the Convention and the Protocols thereto and finds no reasons to justify the continued examination of the application.

In view of the above, it is appropriate to strike the case out of the list.

For these reasons, the Court, unanimously,

Decides to strike the application out of its list of cases in accordance with Article 39 of the Convention.

Done in English and notified in writing on 30 March 2023.

Viktoriya Maradudina Acting Deputy Registrar	Alena Poláčková President

APPENDIX

Application raising complaints under Articles 6 and 11 of the Convention (unlawful or disproportionate measures against organisers and participants of public assemblies and unfair trial in administrative-offence proceedings)

Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Date of receipt of the Government's declaration	Date of receipt of the applicant's acceptance	Amount awarded for pecuniary and non-pecuniary damage per applicant (in euros)[1]	Amount awarded for costs and expenses per application (in euros)[2]
33047/18 21/06/2018	**Arastun Ali oglu BAKHSHALIYEV** 1981	Javad JAVADOV Baku	19/01/2023	01/02/2023	2,300	550 (to be paid into the bank account of the applicant's representative)

[1] Plus any tax that may be chargeable to the applicant.
[2] Plus any tax that may be chargeable to the applicant.